

21STCV07271 21STCV07271

County: los-angeles

Division: Civil Law and Motion

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Case Number: 21STCV07271 Hearing Date: July 29, 2026 Dept: S27

BACKGROUND

On

February 24, 2021, Plaintiffs Adalberto Ramirez, Fernando Santana Velazco, and Mark Anthony Velasquez filed a Complaint alleging a cause of action for negligence against Defendants Juan Carlos Tejeda and Braxton R, LLC, stemming from a vehicle collision.

On

April 10, 2026, the Court granted Defendants' Motion to Dismiss for failure to prosecute the case by bringing it to trial within five years.

On

April 27, 2026, Plaintiffs filed the instant motion for reconsideration. On April 28, 2026, Plaintiffs filed a notice of errata.

On

June 16, 2026, Defendants filed an opposition.

On

June 23, 2026, Plaintiffs filed a reply.

DISCUSSION

Applicable

Law

"When an application for an order has been

made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc. § 1008.)

The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (See *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.)

A party seeking reconsideration of a prior order based on “new or different facts, circumstances or law” must provide a satisfactory explanation for failing to present the information at the first hearing, i.e., a showing of reasonable diligence. (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.)

Preliminary
Matters

A. Length
of Plaintiffs’ Brief

As
a preliminary matter, Plaintiffs’ moving brief is 26 pages long, with a table of authorities taking up three pages. Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages. (CRC Rule 3.1113.) Thus, the Court will not consider any argument past page 18.

B. Request
for Judicial Notice

Plaintiffs
seek judicial notice of two of this Court’s prior Orders, and the Order of Chapter 7 Bankruptcy Discharge on May 6, 2024, as to Debtor Defendant Juan

Carlos Tejeda. Signed by Bankruptcy Judge Barry Russell, United States Bankruptcy Court, Central District of California, Case No.: 2:24-bk10678-BR. These requests are GRANTED.

Defendants seek judicial notice of two Bankruptcy Court filings in Defendant Juan Carlos Tejeda's bankruptcy proceedings. These requests are GRANTED.

Analysis

On

April 10, 2026, the Court dismissed this Action for Plaintiffs' failure to bring the case to trial within five years. The Court found that Plaintiffs' tolling arguments were made without citation to any legal authority and without any calculation of what, exactly, they contended the current 5-year deadline to be after tolling. The Court further found Plaintiffs' opposition completely devoid of any case law which would have allowed the Court to find that Plaintiffs' cited circumstances constitute impossibility or impracticability. The Court also did not believe that Defendants explicitly stipulated to extend the 5-year deadline.

Defendants

seek reconsideration of the April 10, 2026 ruling on the basis of new facts and "different/controlling authority directly on point."

i.

Different/Controlling Authority

Plaintiffs acknowledge that they cited no authority in opposing the motion to dismiss that would have allowed the Court to find that the parties' stipulation to continue trial served to extend the 5-year mandatory dismissal deadline. Plaintiffs claim to now present controlling authority that a written stipulation setting a trial date beyond five years necessarily extends the statutory deadline without an express waiver: *Munoz v. City of Tracy* (2015) 238 Cal.App.4th 354. Plaintiffs claim that this authority was not presented earlier because its dispositive relevance became apparent only after the Court's ruling turned on the absence of authority that such a stipulation extends the five-year deadline.

Here,

Plaintiffs' reasoning for not presenting Munoz in opposition to the motion to dismiss or at the hearing is unpersuasive. Plaintiffs' opposition contained clear argument that directly involved the question of whether a stipulation to extend the trial date impliedly extends the five-year deadline: "By signing an agreement to set a trial date that inherently fell outside the initial five-year window, Defendants validly stipulated to extend the statutory deadline under Code of Civil Procedure section 583.330. A clear written stipulation extending the trial date is fully enforceable and saves an action from dismissal—even if a defendant later experiences buyer's remorse or attempts to argue the five-year mark has technically passed." (Plaintiff's Opposition to Motion to Dismiss, p. 2.) This question was clearly at issue before the Court's ruling. It is unclear why Plaintiffs did not offer Munoz or any legal authority whatsoever. Munoz existed at the time of this Court's ruling, and Plaintiff could have discovered it and produced it by exercising reasonable diligence.

Thus, Plaintiffs fail to establish new or different legal authority, nor a satisfactory explanation for failing to present the authority in opposition to the Motion to Dismiss or at the hearing.

ii. New/Different Facts

In dismissing this action for failure to bring the case to trial within five years, the Court found that Plaintiffs' tolling arguments were made without citation to any legal authority and without any calculation of what, exactly, they contended the current 5-year deadline to be after tolling.

Plaintiffs

now argue that at the time the Court issued its April 10, 2026 ruling, Plaintiffs did not have the benefit of knowing of Defendant Tejeda's May 6, 2024 Bankruptcy Discharge Order ("Discharge Order"), until April 12, 2026, two days after the Hearing.

Plaintiffs claim that they did not discover the Discharge Order before the previous Hearing because Plaintiffs had no reason to believe that there was a Discharge Order considering: (1) The Court ordered that the stay "remain in effect as to Tejeda" in its Orders of October 2, 2024, and July 24, 2025 (October 2, 2024, Minute Order, Ex. 9; Dufour Decl.¶ 20; See also July 24,

2025, Minute Order, Ex. 10; Dufour Decl.¶ 21); (2) Defendant never filed and served the required CM 181 Notice of Termination/Modification as required per California Rules of Court 3.650(d); and (3) Defendant personally appeared at the October 2, 2024, and July 24, 2025 hearings and did not inform the Court that the Bankruptcy case had been discharged.

Plaintiffs further contend that the Discharge Order is material because it “provides the missing, fixed, court-entered date certain that is necessary to complete a defensible computation of the adjusted -dismissal deadline.”

Defendants argue that Plaintiffs should have had notice of the Discharge Order before opposing the Motion to Dismiss because (1) the bankruptcy action is of a public nature allowing for a simple PACER search to learn the status of the case; and (2) the Clerk of the Bankruptcy Court served the Discharge Order on all listed creditors and their counsel, including Plaintiffs’ Counsel Heidari Law Group, PC, by mail on May 8, 2024. (See Defendants’ Request for Judicial Notice, Exhibit “B.”)

In reply, Plaintiffs argue that Dufour Law, PC had already substituted in as counsel of record over a year prior to the Bankruptcy Discharge of May 6, 2024, and notice to former counsel is not notice to counsel of record for the moving Plaintiffs. Plaintiffs also contend that this Court “itself twice stated that the case remained stayed as to Tejeda, and Defendants themselves refused to participate in discovery while asserting that ‘the case is stayed and off the civil docket.’ ” (Reply, p. 2.)

Here, Plaintiffs have failed to establish that their lack of knowledge of the Bankruptcy Discharge Order provides a basis for reconsideration. It is questionable whether Plaintiffs received actual notice from the Bankruptcy Court in 2024, as it appears their former counsel was serve rather than their current counsel. However, Defendants are correct that a search via PACER would have disclosed every aspect of the proceedings in the Chapter 7 case. Further, while this Court did state that the case remained stayed as to Tejeda after the Discharge Order, this was due to no notice from either party to the contrary. This Court is not responsible for seeking out updates on Bankruptcy cases when Counsel is expected to bring such updates to the Court.

Plaintiffs claim that “the Court

criticized Plaintiffs for not providing a precise, supported tolling analysis. The Discharge Order resolves that precise deficiency for the Bankruptcy period by providing an objectively verifiable termination date for the Stay." However, even if Plaintiffs could not have discovered the Discharge Order through reasonable diligence, their ignorance of that Order does not explain why they failed to offer any precise tolling analysis whatsoever using the purported tolling periods that they were aware of and argued (ie. erroneous notice of settlement, unauthorized dismissal) when opposing the Motion to Dismiss. Plaintiffs failed to provide any calculation of what they contended the current 5-year deadline to be after tolling, and it is unclear how earlier discovery of this Discharge Order would have changed that.

Thus, Plaintiffs fail to establish new or different facts, nor a satisfactory explanation for failing to present the required tolling information in their opposition or at the hearing on the Motion to Dismiss.

Therefore, Plaintiffs establish no basis for reconsideration of the Court's April 10, 2026 order.

CONCLUSION

Plaintiffs' Motion for Reconsideration is DENIED.

Plaintiffs
to give notice.